

PRIVILEGED & CONFIDENTIAL

TO: Group CEO & Founder

FROM: Chief Of Legal, Elitez Group (former Allen & Glenhill)

DATE: 18 May 2026

SUBJECT: Comprehensive Legal & Strategic Assessment — Project Lemon-Man (Workforce Reliability Network) vs. Elitez Group Corporate Governance & Equities

Executive Summary

Project Lemon-Man sits on a high-wire intersection of the Personal Data Protection Act (PDPA), the Defamation Act, and the newly operative Workplace Fairness Act (WFA). While the architecture is thoughtfully designed with procedural safeguards modeled after the Monetary Authority of Singapore (MAS) reference-check framework, it contains **critical structural vulnerabilities** that could expose both the new venture and Elitez Group to existential legal and reputational risks.

The primary verdict is **Conditionally Defensible, Subject to Radical Structural Modification**. The baseline assumption that the MAS "rolling bad apples" regime serves as a direct legal shield is a rhetorical anchor, not a statutory one. MAS mandates reference checks through regulatory notices backed by the Financial Services and Markets Act (FSMA). Lemon-Man, as a private commercial platform, possesses no such statutory coercion or immunity.

Furthermore, your preferred "Option A" governance structure (acting as a silent investor while remaining Group CEO of Elitez) is **legally untenable under Singapore company law** and poses an immediate threat to Elitez's most valuable assets: our MOM Human Capital Partnership status, our IMDA Data Protection Trustmark, and our core government relationships.

1. PDPA & Data Protection Deep Dive

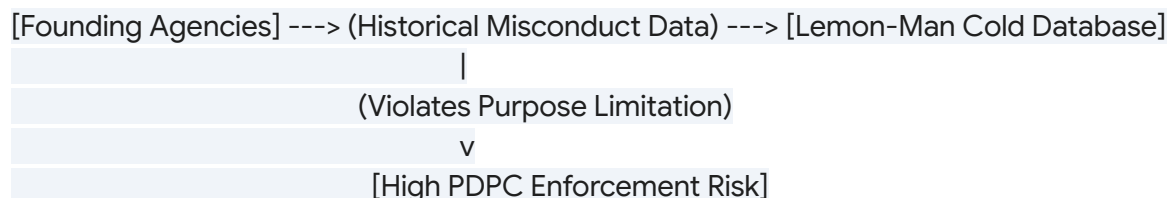
Lawful Bases & The Unclaimed Profile Problem

The proposed data architecture splits workers into "Claimed" and "Unclaimed" profiles. While **Consent** cleanly covers claimed profiles, relying on a combination of the **Evaluative Purpose Exception** and **Legitimate Interests** for unclaimed profiles is highly aggressive:

- **The Evaluative Purpose Glitch:** The PDPA Second Schedule allows an *employer* to collect, use, or disclose personal data without consent for evaluative purposes (e.g., determining suitability for employment). However, this exception is typically restricted to the bilateral relationship between the employer and the job seeker. It does not explicitly protect a *third-party commercial intermediary* that persistently aggregates, scores, and monetizes historical misconduct allegations for public lookup.
- **Legitimate Interests Assessment (LIA):** To pass the PDPC's balancing test, the platform's commercial interest must outweigh the individual's residual rights. A persistent database of unverified, negative behavioral records (such as shift no-shows or pattern medical leave) will struggle to survive a strict LIA because the "harm test" favors the worker whose livelihood is systematically restricted across multiple independent agencies.

The Onboarding of Anchor Records (A12)

The Founding Contributor Programme (bootstrapping historical conduct data from 8–12 agencies before the worker claims their profile) is the **single largest data protection risk**.



These historical records were collected by those agencies under an employment or deployment mandate. Onward-transferring them to a centralized, third-party behavioral bureau without explicit prior notice to the data subjects violates the **Purpose Limitation Obligation** of the PDPA. The PDPC will likely characterize Lemon-Man not as a neutral credit bureau (which operates under its own statutory framework, the Credit Bureau Act), but as an ad-hoc publisher of unverified, adverse employment claims.

2. Defamation, Malicious Falsehood & *Ramesh Krishnan*

Primary Publisher vs. Intermediary Status

The architecture attempts to position Lemon-Man as a neutral conduit, pushing contract liability back onto the contributing employers. However, because the platform calculates a proprietary **Reliability Score (0–1000)** based on weighted variables, it alters the raw facts to generate a new, synthesized qualitative conclusion:

Legal Reality: The moment Lemon-Man applies an algorithmic score to a worker's profile, it ceases to be a mere intermediary. Under Singapore common law, Lemon-Man becomes a **Primary Publisher** of that synthesized defamatory meaning and cannot claim complete statutory safe harbor.

The Limits of Qualified Privilege

For a defamation defense of qualified privilege to apply, the publisher must have a legal, social, or moral duty to communicate the information, and the recipient must have a corresponding interest in receiving it.

- While a bilateral reference check between a past employer and a prospective employer is a classic protected occasion (*Ramesh Krishnan v AXA*), broadcasting a worker's adverse records to *any* KYB-verified subscriber who declares a "hiring interest" stretches the narrow circle of privilege to its breaking point.
- **The Cherry-Picking Risk:** The schema-only, no-free-text design avoids subjective rants, but it introduces an ironic *Ramesh Krishnan* risk: **misleading by omission**. For example, recording a "late cancellation <24h" without showing that the worker was hospitalized creates an unfair, incomplete, and potentially defamatory overall impression.

3. Workplace Fairness Act (WFA) & Employment Law

As the WFA enters its fully operative phase in 2026–2027, the platform faces structural conflict with evolving fair employment directives:

- **Retaliatory Action & Worker Counter-Records:** Section 4.6 allows workers to submit counter-records against employers for wage disputes, illegal deployment, or retaliatory dismissal. While intended to create structural symmetry, this feature risks turning the platform into an unregulated tribunal. If a subscriber checks a worker's profile, sees an active wage dispute counter-record, and immediately cancels their deployment application, that employer—and Lemon-Man as the facilitator—could face claims of **retaliatory exclusion** under the WFA.
- **Due Inquiry Alignment:** The platform asks contributing employers if a due-inquiry process was conducted via a boolean checkbox. This is insufficient. Under the Employment Act and MOM Tripartite Guidelines, due inquiry requires formal steps. If Lemon-Man hosts a record where the employer falsely asserted "Due Inquiry = Yes," the platform remains the engine that amplifies an unlawful employment action.

4. Corporate Governance & The Elitez Wall

Your preferred **Option A** (acting as a silent investor while hiding your identity from public materials) creates severe exposure under Singapore company law:

Fiduciary Duties & Conflicts of Interest

As the active Chief Executive Officer of Elitez Group, you owe strict fiduciary duties and a duty of loyalty to Elitez. Elitez Group operates heavily in contract staffing, mass recruitment, and blue-collar/mid-executive talent deployment (via Elitez FMCG, Hey Rocket, and Elitez Events).

Launching a separate, personal workforce reliability platform that acts as a clearinghouse for shift-labor reputation is a **direct conflict of interest** with Elitez's core business lines. It cannot be insulated simply by omitting your name from Lemon-Man's public registry. Under the Companies Act, if you hold a majority economic interest and direct independent management behind the scenes, you will be deemed a **Shadow Director**, binding you to identical disclosure and liability requirements.

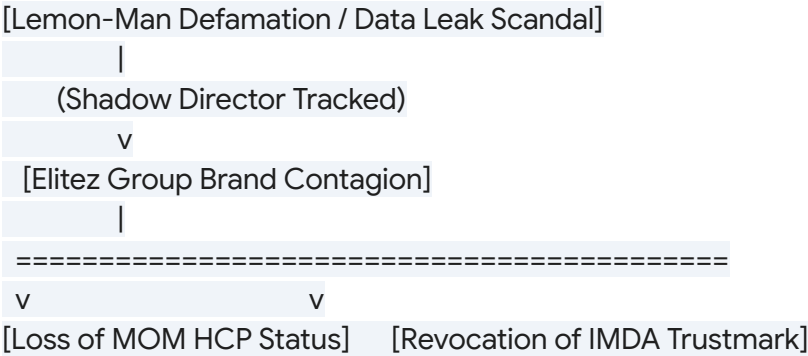
Misuse of Corporate Resources

Briefing Elitez lieutenants (such as our CFO Lin Rong Jie, Executive Director Wayne Chen, or Group Director Yvonne Tan) to assist in planning or evaluating this personal venture is a technical **breach of your duty to Elitez Group**. You are utilizing executives whose employment is funded by Elitez corporate capital to build a separate entity that you own personally.

Risk to Elitez's Hard-Earned Equities

Elitez Group has spent 15 years meticulously building its reputation as a trusted state-aligned partner:

- We are one of only nine prestigious employment agencies handpicked by MOM for the **Human Capital Partnership** program.
- We are an exclusive recruitment partner with the **Institute for Human Resource Professionals (IHRP)**.
- We hold the **IMDA Data Protection Trustmark**, an **ISO 27001** certification, and are a multi-year **Enterprise 50 Award** winner.
- We are deeply integrated with government bodies like **Workforce Singapore (WSG)** and **NTUC's e2i**.



If Lemon-Man suffers a data breach, gets investigated by the PDPC for blacklisting workers, or is sued for defamation with media amplification, investigative journalists or regulators *will* unmask your dual interests. The brand contagion will immediately flow to Elitez Group. This could result in the revocation of our Data Protection Trustmark , suspension of our MOM status , and the collapse of our critical government facilitation grants (such as CCP and WSG-endorsed career pathways).

Architectural Modifications & Rejection Confirmations

To salvage the viability of Project Lemon-Man while completely shielding Elitez Group, the following adjustments are legally mandated:

#	Proposed Choice	Legal Evaluation & Mandatory Modification	Residual Risk
A2	KYB Verification via UEN + Attestation.	Defensible. Must explicitly add an automated cross-check against MOM's Employment	Low

		Agency Personnel system to ensure the submitter has valid regulatory standing.	
A3	14-day pre-publication window.	Insufficient. It must be a 21-day window to precisely match the MAS Reference Check standard. The record must remain completely hidden during this period.	Medium
A6	Schema-only structured records.	Modify. Must add a mandatory context field where employers must state if any mitigating factor (e.g., medical emergency, family death) was brought forward, eliminating the "misleading by omission" risk.	Medium
A8	Disputed records flagged but visible.	Reject. Highly dangerous. A flagged, visible negative record still causes real-time economic harm (loss of shift bookings). Records must be hidden immediately upon dispute and remain hidden until	High (if un-modified)

		review concludes.	
A12	Founding Contributor Programme (Bootstrapping).	Halt. You cannot ingest historical records without exposing founding agencies to massive PDPA fines. Bootstrapping must be strictly forward-looking from day one of platform registration.	High

Rejection Confirmations (Section 7 Validation)

I fully endorse the explicit exclusion of choices **R1 through R8**. Specifically:

- Confirming the rejection of **R1 (Pay-to-remove)** and **R2 (Off-platform negotiation)** is absolute; keeping them would instantly convert the platform into a tool for corporate extortion under the Prevention of Harassment Act (POHA).
- Confirming the rejection of **R5 (Free-text attitude reviews)** is critical; allowing subjective comments would immediately dismantle any defensive claim to qualified privilege.

Actionable Next Steps & Strategic Recommendation

To move forward safely without jeopardizing your current position or the enterprise value of Elitez Group, we must reshape the fundamental approach:

1. **Abandon "Option A" (The Silent Shadow Vehicle):** You cannot legally or safely sit behind this platform while serving as Elitez CEO. If this project proceeds, it must be incubated directly as an official corporate innovation subsidiary of Elitez Group, or you must completely divest from any operational or voting control, placing your capital into an blind, independent third-party venture fund.

2. **Reposition under Elitez's Existing Trust Infrastructures:** By executing this project transparently as a corporate initiative, we can leverage our **IMDA Data Protection Trustmark** and **ISO 27001** status to show the PDPC that the data processing is governed by Singapore's highest corporate standards.
3. **Engage the Tripartite Alliance Early:** Do not build the software platform yet. We should utilize Elitez's deep relationship with **NTUC's e2i** and **MOM** to position Lemon-Man not as a private blacklist tool, but as a transparent, national "Tripartite Shift-Reliability Sandbox" designed to protect localized retail and F&B supply chains.

As your internal counsel, my priority is to protect the enterprise value and compliance integrity of our group. I am prepared to help you refine this brief before it is issued to external counsel to ensure we get the most precise engineering-level guidance possible.